

		from Respondent Lorelei Ann Griggs ("Respondent"). Petitioner further moves for monetary sanctions in the amount of \$1,060.00. In opposition (ROAs 476, 484, and 497), Respondent states that she has since complied with discovery and produced documents. However, she does not state a satisfactory reason for failing to timely respond to discovery or request an extension. Respondent also argues that the discovery sought by the subject document demand is duplicative. There is no evidence of duplication presented. Moreover, "[a] party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (<i>Irvington-Moore, Inc. v. Superior Court</i> (1993) 14 Cal.App.4th 733, 738-739 (emphasis added).) Further, no motion for protective order was filed. Petitioner maintains that discovery sanctions should be imposed for necessitating the motion. (ROA 487.) The court is not persuaded that Respondent has opposed this motion with substantial justification. Pursuant to Code of Civil Procedure section 2031.300(c), the court awards Petitioner attorney's fees in the amount of \$1,060.00 payable by Respondent Lorelei Ann Griggs. Counsel for moving party is ordered to give notice of this ruling and may elect to prepare, file and serve a proposed Order After Hearing.
01499532	Rodman - Trust	TENTATIVE RULING Case: Rodman - Trust 01499532 Calendar No.: 7 Date: 05/27/2026 MOTIONS TO COMPEL MEDIATION AND ARBITRATION (ROA 13) Before the court is a motion by Kara Kruse Lee ("Kara") to compel mediation and arbitration for the pending petitions. The motion is opposed by Kevin Craig Kruse ("Kevin"). Since the parties involved in this case share a surname, the court uses first names for clarity and no disrespect is intended. (<i>Morgan v. Superior Court</i> (2018) 23 Cal. App. 5th 1026. fn.1.)

There are two petitions currently pending:

- Kevin's Petition to compel an accounting from Kara (ROA 2); and
- Kara's Petition for recovery of property and financial elder abuse (ROA 10).

The subject trust contains the following language regarding mediation and arbitration: "I request that any questions or disputes that arise during the administration of this trust be resolved by mediation and, if necessary, arbitration in accordance with the Uniform Arbitration Act." (ROA 11, Duff Decl., Ex. A, § 11:05.)

The parties dispute whether the foregoing arbitration clause is precatory or mandatory. While the phrase "I request" is clearly precatory in nature, Kara argues that the court must look to the settlor's intent in determining whether the arbitration clause is mandatory. Kara argues that the settlor's intent is reflected in the title of Section 11.05 "No Court Proceedings." However, Section 13.07(c) of the Trust states that the "headings of Articles, Sections, and Subsections used within this trust . . . have no significance in the interpretation or construction of this trust."

In reviewing and considering the entirety of Section 11.05, as well as other language in the Trust, the court is unable to determine that the settlor intended to mandate arbitration rather than express a preference for it. At most, the court would interpret the language to constitute an instruction to *the trustee* to avoid litigation when possible.

Even if the settlor intended to mandate mediation and arbitration, the court is not persuaded that such mandate could be enforced against Kevin at this juncture. In *McArthur v. McArthur* (2014) 224 Cal.App.4th 651, the Court of Appeal for the First District, Division 5, found that a trust beneficiary was not bound by an arbitration clause in a trust instrument where the beneficiary was not claiming any benefits or enforcing any rights under the trust. (*Id.* at 662-663.) Here, Kevin is invoking a statutory right to compel an accounting under Probate Code section 17200(b)(7), which is a right granted by the Legislature, not a contractual right derived from the trust instrument.

For the foregoing reasons, the motion to compel arbitration is **DENIED**.

Counsel for moving party is ordered to give notice of ruling.

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